

Subodh Ramesh Balsaraf vs Sau. Seema Subodh Balsaraf on 19 July, 2016

Author: A.S. Chandurkar

Bench: A.S. Chandurkar

wp4552.15.odt

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH : NAGPUR.

WRIT PETITION NO.4552 OF 2015

PETITIONER:

(Respondent in

H.M.P.247/14)

Subodh Ramesh Balsaraf
years Occp: Legal Pr

Flat No.F, Krish Par

Daulat Building, Mores
Raut Wadi, Akola Tah. & Di

-VERSUS-

RESPONDENT:

Sau. Seema Subosh Balsaraf

ig

years, occup: Legal
C/o Rajesh Ghyar, Sa
Panchmukhi Mandir, Pan
Chowk, Dabki Road, A
Distt. Akola.

Shri U. J. Deshpande, Advocate for the petitioner.

Shri S. V. Sohoni, Advocate for the respondent.

CORAM: A.S.

DATED: 19

ORAL JUDGMENT :

1. Rule. Heard finally with the consent of the learned Counsel for the parties.

2. The petitioner is aggrieved by the order dated 22-6-2015 passed by the learned Civil Judge, Senior Division, Akola in H.M.P. No.247/2014. The said order has been passed on the application for adjusting the amount of interim maintenance that was granted by the Civil Court by the earlier order dated 19.12.2014.

3. In proceedings for restitution of conjugal rights filed by the respondent, she moved an application for grant of interim maintenance. The trial Court by order dated 19-12-2014 granted interim maintenance @ Rs.3000/- per month. Similarly, in proceedings filed by the respondent under the provisions of Protection of Women from Domestic Violence Act, 2006(for short, the Act of 2006), the learned Magistrate by order dated 11-11- 2014 granted interim maintenance of Rs.5000/- per month. The petitioner, therefore, moved an application below Exhibit-35 seeking adjustment of the amount paid in the matrimonial proceedings after taking into consideration the order passed by the learned Magistrate. By the impugned order, the Civil Court directed adjustment of the total amount to be paid to the extent of Rs.6,500/- per month.

4. Shri U. J. Deshpande, the learned Counsel for the petitioner submitted that the Civil Court was not justified in modifying the direction that was issued by the learned Magistrate in the proceedings under the Act of 2006. He submitted that only the modification of the subsequent order passed by the Civil Court by adjusting the amount of maintenance already granted had been sought. According to him, the impugned order was beyond the jurisdiction of the Civil Court.

5. Shri S. V. Sohoni, the learned Counsel for the respondent on the other hand submitted that there was no provision for adjusting the amount of interim maintenance as directed to be paid under Section 24 of the Hindu Marriage Act.

He submitted that the application in question itself was not maintainable.

6. Having heard the respective Counsel, it can be seen that on 11-11-2014 the learned Magistrate directed payment of RS.5000/- per month towards the interim maintenance in proceedings under the Act of 2006. Thereafter on 19-12-2014, in the petition for restitution of conjugal rights, the Civil

Court granted interim maintenance of Rs.3000/- per month. These subsequent facts were sought to be brought to the notice of the Civil Court for adjusting the amount of maintenance that was directed to be paid in the Hindu Marriage Petition. Instead, the Civil Court directed the amount to be adjusted to Rs.6,500/- by noting the fact that by order dated 19-11-2014 an interim maintenance of Rs.3000/- per month had been directed to be paid.

If the Civil Court was of the opinion that any adjustment of the amount of maintenance was called for, the same could have been done only by modifying the order dated 19-12-2014 that was passed in the Hindu Marriage Petition.

7. In view of aforesaid, I find that the application below Exhibit-35 deserves to be considered afresh. The objection raised on behalf of the respondent that such adjustment is not permissible in the amount of interim maintenance can also be taken into consideration by the Civil Court.

8. In view of aforesaid, the order dated 22-6-2015 passed below Exhibit-35 is set aside. The Civil Court shall reconsider the aforesaid application and decide the same in accordance with law.

The respective contentions of the parties are kept open. Till the said application is decided, the petitioner shall continue to pay maintenance @ Rs.5000/- per month without prejudice to the rights of the parties. The said application be decided expeditiously and within a period of three months from today.

9. Rule made absolute in aforesaid terms. No costs.

JUDGE //MULEY// CERTIFICATE "I certify that this Judgment/Order uploaded is a true and correct copy of original signed Judgment/Order."

Uploaded by : Sanjay B. Muley, Uploaded on : 22-07-2016 Personal Assistant.